

26STCV04037 26STCV04037

County: los-angeles

Division: Civil Law and Motion

Department: 511

Hearing date: 2026-08-05

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C511%2C08%2F05%2F2026

Source SHA-256: e8bad0b7cc59c7d88cd9bdc31b2bbeb40e37015c7ca192b124350361c8aa31d0

Case Number: 26STCV04037 Hearing Date: August 5, 2026 Dept: 511

Tentative Ruling

Judge Upinder S.

Kalra, Department 511

HEARING DATE: August

5, 2026

CASE NAME: Mark

Haddawy, Inc. v. Fort Sufi Enterprises, LLC, et al.

CASE NO.: 26STCV04037

DEMURRER

TO FIRST AMENDED COMPLAINT WITH MOTION TO STRIKE

MOVING PARTY: Defendants

Fort Sufi Enterprises, LLC and Jeff Bhasker

RESPONDING PARTY(S): Plaintiff Mark Haddawy, Inc.

REQUESTED RELIEF:

1. Demurrer

to the entire first amended complaint as barred by Bus. & Prof. Code §
7031(a);

2. Demurrers

to each cause of action for failing to state sufficient facts to constitute a cause of action and for uncertainty;

3. Motion

to strike portions of the FAC pertaining to joint and several liability, prayer for non-statutory expenses, and contract-measure damages alleges in the equitable causes of action.

TENTATIVE RULING:

1. Demurrer

to the entire FAC is OVERRULED;

2. Demurrers

to the first, second, and third causes of action are SUSTAINED with leave to amend;

3. Demurrers

to the fourth, fifth, and sixth causes of action are OVERRULED;

4. Motion

to strike is DENIED;

5. Plaintiff

shall file their amended complaint within 21 days of this ruling.

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

On February 6, 2026, Plaintiff Mark Haddawy, Inc. (Plaintiff) filed a complaint against Defendants Fort Sufi Enterprises, LLC and Jeff Bhasker (Defendants) with five causes of action for: (1) breach of contract; (2) breach of implied-in-fact contract; (3) breach of the implied covenant of good faith and fair dealing; (4) quantum meruit; and (5) unjust enrichment.

Plaintiff alleges that it entered into an agreement—both verbal and written—under which Defendants were to pay Plaintiff 20% of all invoiced work for professional design services beginning in December 2024. Plaintiff claims it performed extensive design and project-management services throughout 2025, invoiced Defendants pursuant to the agreed Schedule of Value, and continued working in reliance on the parties' acknowledged fee structure.

In early December 2025, Defendants allegedly terminated the agreement without paying the full amount owed, leaving an outstanding balance of \$318,617.40 for services and materials for which Plaintiff asserts it has not been compensated.

On April 3, 2026, Plaintiff filed the operative first amended complaint (FAC).

On May 4, 2026, Defendants filed the instant demurrer with motion to strike. On July 23, 2026, Plaintiff filed oppositions. On July 27, 2026, Defendants filed replies.

LEGAL STANDARD:

Meet and Confer

Prior to filing a demurrer, the demurring party is required to satisfy their meet and confer obligations pursuant to Code of Civ. Proc. §430.41, and demonstrate that they so satisfied their meet and confer obligation by submitting a declaration pursuant to Code of Civ. Proc. §430.41(a)(2) & (3). The meet and confer requirement also applies to motions to strike. (CCP § 435.5.)

Here, the parties exchanged emails on April 22, 2026 and April 27, 2026. (Declaration of David M. Murphy ¶¶ 3, 4.) This is sufficient for the meet and confer requirement.

Demurrer – Sufficiency of Facts

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) “A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action.” (Hahn, 147 Cal.App.4th at 747.)

;

When considering demurrers, courts read the allegations liberally and in context, accepting the alleged facts as true. (Nolte v. Cedars-Sinai Medical Center (2015) 236 Cal.App.4th 1401, 1406.) Courts also consider exhibits attached to the complaint and incorporated by reference. (See Frantz v. Blackwell (1987) 189 Cal.App.3d 91, 94 (Frantz).);

Demurrer

– Uncertainty

CCP § 430.10(f) provides that a party may demur to a pleading because: “The pleading is uncertain. As used in this subdivision, “uncertain” includes ambiguous and unintelligible.”

However, “demurrers for uncertainty are disfavored, and are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond.” (Morris v. JPMorgan Chase Bank, N.A. (2022) 78 Cal.App.5th 279, 292.) “A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.” (Chen v. Berenjian (2019) 33 Cal.App.5th 811, 822.) “A demurrer for uncertainty should be overruled when the facts as to which the complaint is uncertain are presumptively within the defendant’s knowledge.” (Ibid.)

Motion to Strike

The court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (CCP § 436(a).) The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Id., § 436(b).) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Id. § 437.) “When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend.” (Vaccaro v. Kaiman (1998) 63 Cal.App.4th 761, 768.);

ANALYSIS:

Demurrer

Entire Complaint:

Bus. & Prof. Code § 7031(a)

Defendants contend the entire FAC fails because it is barred by Bus. & Prof. Code § 7031(a) which requires a license for contractor work. They further contend Plaintiff alleged quintessential construction-management and coordination for which a license is required but did not allege they had a license.

Plaintiff argues that they are not a contractor pursuant to Bus. & Prof. Code § 7026's or § 7026.1's definition so the licensing law does not apply.

Defendants reply that Plaintiff's label as a consultant does not control when their conduct and compensation request is directly tied to construction scope, construction costs, construction materials, bidding and project-level construction management.

"[N]o person engaged in the business or acting in the capacity of a contractor, may bring or maintain any action, or recover in law or equity in any action, in any court of this state for the collection of compensation for the performance of any act or contract where a license is required by this chapter without alleging that they were a duly licensed contractor at all times during the performance of that act or contract regardless of the merits of the cause of action brought by the person" (Bus. & Prof. Code § 7031(a).)

Contractor "is synonymous with 'builder'" and is "any person who undertakes to or offers to undertake to, or purports to have the capacity to undertake to, or submits a bid to, or does himself or herself or by or through others, construct, alter, repair, add to, subtract from, improve, move, wreck or demolish any building, highway, road, parking facility, railroad, excavation or other structure, project, development or improvement, or to do any part thereof," (Bus. & Prof. Code § 7026.)

A construction manager is not a contractor. (The Fifth Day, LLC v. Bolotin (2009) 172 Cal.App.4th 939, 947-948, 950.)

In The Fifth Day, LLC,
the Court of Appeal determined that the plaintiff's duties did not render its management services those of a contractor requiring a license. There, the duties were:

[T]o assist on behalf of the Owner, in coordinating the activities of the various workers to enable them to complete their assigned tasks in an organized and efficient manner, on time and on budget; to maintain records such as insurance certificates, as well as the financial books and records for the project; to keep the Owner apprised of the status of the project; to be the on-site "point person" to respond to issues as they arose; and generally to act as the Owner's agent with respect to the various parties connected with the development of the project.

(The Fifth Day, LLC,
supra, 172 Cal.App.4th at p. 948.)

What is more, the plaintiff "had no responsibility or authority to perform any construction work on the project, or to enter into any contract or subcontract for the performance of such work." (The Fifth Day, LLC, supra, 172 Cal.App.4th at p. 948.) Instead, the owner entered into the contracts with the licensed general contractor who, in turn, hired licensed subcontractors. (Ibid.) The Court of Appeal concluded that the plaintiff's work fell outside the scope of the definition of a contractor and so the licensing requirements did not apply to them.

So, too, here. Plaintiff alleges they performed the following work: "a. Onboarded the General Contractor and a team of consultants;" "b. Directly coordinated with the following General Contractors, engineers, and architects: JWB Construction Inc. . . . John Labib Structural Engineers, and Blanco Architecture;" "c. Advised the General Contractor in preparing and defining the initial SOV;" "d. Further advised the General Contractor in defining and adding scope to the SOV as the project progressed;" "e. Advised John Labib Structural Engineers in defining solutions for the failing pool structure and various other structural solutions related to the project;" "f. Contributed to specifying much of the \$1,968,087.00 SOV within the scope, ensuring that the breakdown of project cost aligned with the Defendants' design intent, providing valuations of various design elements as well as any changes to the scope of work, and verifying the proper allocation of materials;" "g. Further advised interior layouts and details beyond those budgeted in the initial SOV, which have yet to be budgeted;" and "h. Traveled

for monthly site meetings for over 12 months.” (FAC ¶ 20.) On its face, this work is akin to the “agent of owner” work articulated in *The Fifth Day, LLC*.^[1] Therefore, for pleading purposes, it falls outside the scope of the definition of contractor and the licensing requirements of Bus. & Prof. Code § 7031.)

Accordingly, the court **OVERRULES** Defendants’ demurrer to the entire FAC on this ground.

First Cause of
Action: Breach of Contract

Defendants contend this claim fails under Bus. & Prof. Code § 7164 and § 7159 for lacking a written contract. Defendants further contend this claim fails to plead the material terms of the contract based on the payment structure. They raise the same price terms to support an uncertainty argument. Finally, the contract is not conclusively identified as a written, verbal, or implied contract.

Plaintiff argues that Bus. & Prof. Code §§ 7159 and 7164 do not apply because they are not a contractor and the law does not apply to remodels of existing homes. Plaintiff also argues that Defendants accepted the benefits of the contract without raising objections and permitted Plaintiff to continue performance for six months before terminating the contract. Finally, Plaintiff argues that the terms are sufficiently definite.

Defendants reply that there is still no alleged signed writing, the price terms are still based on an indefinite percentage, and remains uncertain.

i.

Bus. & Prof. Code §§ 7159, 7164

Bus. & Prof. Code § 7159 applies to an agreement between a contractor and an owner for home improvement. (Bus. & Prof. Code § 7159(b).) Bus. & Prof. Code § 7164 also applies to contracts between an owner and a contractor. (Bus. & Prof. Code § 7164(a).) As articulated above, Plaintiff is not a contractor. Thus, these sections do not apply to them.

ii.

Sufficiency of Terms

“To establish a cause of action for breach of contract, the plaintiff must plead and prove (1) the existence of the contract, (2) the plaintiff’s performance or excuse for nonperformance, (3) the defendant’s breach, and (4) resulting damages to the plaintiff. [Citation.]” (Maxwell v. Dolezal (2014) 231 Cal.App.4th 93, 97-98.)

“An oral contract may be pleaded generally as to its effect, because it is rarely possible to allege the exact words.” (Khoury v. Maly’s of California, Inc. (1993) 14 Cal.App.4th 612, 616.)

The issue here is whether Plaintiff sufficiently alleged the existence of a contract.

“Under basic contract law an offer must be sufficiently definite, or must call for such definite terms in the acceptance that the performance promised is reasonably certain.” (Ladas v. California State Auto. Assn. (1993) 19 Cal.App.4th 761, 770 [internal quotations omitted].) “To be enforceable, a promise must be definite enough that a court can determine the scope of the duty and the limits of performance must be sufficiently defined to provide a rational basis for the assessment of damages.” (Ibid.) “All agreements have some degree of indefiniteness and some degree of uncertainty.” (Moncada v. West Coast Quartz Corp. (2013) 221 Cal.App.4th 768, 777.) Even so, “the law leans against the destruction of contracts because of uncertainty and favors an interpretation which will carry into effect the reasonable intention of the parties if it can be ascertained.” (Ibid.)

Ladas concerned an “amorphous promise to consider what employees at other companies are earning” when setting commission rates. (Ladas, *supra*, 19 Cal.App.4th at p. 771.) The Court of Appeal concluded this could not rise to a contractual duty since it was not part a contractual term and there was no definition as to what “consider” meant. (Ibid.) In short, there was no “rational method for determining breach of computing damages” provided by the plaintiffs for this obligation. (Ibid.)

Moncada concerned a promise to pay “bonuses that would be sufficient for plaintiffs to retire” if

the plaintiffs continued working for the defendants until they sold their business. (Moncada, supra 221 Cal.App.4th at p. 777.) The Court of Appeal reasoned this was sufficient because a court or jury could easily determine if defendants failed to meet this obligation by evaluating whether such bonus was paid. (Id. at p. 778.) The Court added that the retirement amounts were not vague or indefinite but could be readily determined using standard formulae and actuarial tables. (Ibid.)

Here, Plaintiff insufficiently alleged the existence of a contract. First, Plaintiff alleges a contract between the parties made on or about September 9, 2019 “manifested verbally, in writing, and demonstrated through the course of conduct of the parties.” (FAC ¶¶ 7, 8, 9.) Plaintiff also alleges that he confirmed an agreement in place and articulated the fee structure to Defendants’ counsel on a phone call on June 2, 2025. (FAC ¶¶ 14-16.) These allegations indicate there was no written agreement but an oral agreement.

However, Plaintiff insufficiently alleged the terms of the oral contract. To start, Plaintiff alleges he would provide consulting services in exchange for 20% of all invoiced work towards the total of the Schedule of Value. (FAC ¶¶ 7-8.) As in Moncada, the calculation of “20% of all invoiced work towards the total of the Schedule of Value” is sufficiently certain to allow the court or a jury to determine if Defendants failed to pay. Additionally, Plaintiff alleges that this was a consistent term between these parties in other contracts they had. (FAC ¶ 10.) But then Plaintiff alleges that he was entitled to “20% of every dollar spent on the job” which is larger than the Schedule of Value. (FAC ¶¶ 21, 22.) These two terms are inconsistent with each other. Either Plaintiff is entitled to all invoiced work towards the Schedule of Value (which includes materials) or he is entitled to 20% of every dollar spent on the job which may not exceed the Schedule of Value. Thus, the oral contract is insufficiently plead.

Accordingly, the court SUSTAINS Defendants’ demurrer to the first cause of action.

Second Cause of

Action: Breach of Implied-In-Fact Contract

Defendants reiterate the above lack of written contract argument and uncertain price term arguments here. Additionally, they contend no

conduct manifesting assent to key terms.

Plaintiff incorporates their previous arguments here and adds that this is a permitted alternative legal theory.

Defendants' reply here is the same as the first cause of action.

A claim for breach of implied-in-fact contract requires: (1) existence of a contract implied from the promisor's conduct; (2) the plaintiff's performance or excuse for nonperformance; (3) the defendant's breach; and (4) resulting damage. (Gomez v. Lincare, Inc. (2009) 173 Cal.App.4th 508, 525; Blaustein v. Burton (1970) 9 Cal.App.3d 161, 184; Chandler v. Roach (1957) 156 Cal.App.2d 435, 440. See also Yari v. Producers Guild of America, Inc. (2008) 161 Cal.App.4th 172, 182; California Emergency Physicians Med. Group v. PacifiCare of Cal. (2003) 111 Cal.App.4th 1127, 1134 ["In order to plead a cause of action for implied contract, 'the facts from which the promise is implied must be alleged.'"], disapproved on other grounds by Centinela Freeman Emergency Med. Assocs. v. Health Net of California, Inc. (2016) 1 Cal.5th 994, 1014.)

Here, Plaintiff insufficiently stated a claim for breach of implied-in-fact contract. Notably absent is Defendants' conduct manifesting mutual consent. (See, e.g., Siskiyou Hospital, Inc. v. County of Siskiyou (2025) 109 Cal.App.5th 14, 52-53 [County did not pay demands for payment by the plaintiff for services rendered.])

Accordingly, the court SUSTAINS Defendants' demurrer to the second cause of action.

Third Cause of
Action: Breach of the Implied Covenant of Good Faith and Fair Dealing

Defendants reiterate their arguments to the first cause of action here. They add that this claim also fails because there is no independently wrongful conduct aside from the breach and there is no underlying contract.

Plaintiff argues this claim survives with the first and

second causes of action.

Defendants reiterate their arguments on reply.

The elements of a claim for breach of implied covenant of good faith and fair dealing are: (1) the existence of a contractual relationship; (2) an implied duty; (3) breach; and (4) causation of damages. (See, e.g., *Smith v. City and County of San Francisco* (1990) 225 Cal.App.3d 38, 49; *Careau & Co. v. Security Pacific Business Credit, Inc.* (1990) 222 Cal.App.3d 1371, 1395 [“allegations which assert such a claim must show that the conduct of the defendant...demonstrates a failure or refusal to discharge contractual responsibilities, prompted ... by a conscious and deliberate act, which unfairly frustrates the agreed common purposes and disappoints the reasonable expectations of the other party thereby depriving that party of the benefits of the agreement. Just what conduct will meet this criteria must be determined on a case by case basis....”].) “If the allegations do not go beyond the statement of a mere contract breach and, relying on the same alleged acts, simply seek the same damages or other relief already claimed in a companion contract cause of action, they may be disregarded as superfluous as no additional claim is actually stated.” (*Careau, supra*, 222 Cal.App.3d at p. 1395.) Additionally, a plaintiff must allege a “special relationship” between the parties that warrants imposing tort damages for, what is essentially, breach of contract. (*Id.* at p. 1398-1400.)

Here, Plaintiff insufficiently alleged their claim for breach of the implied covenant of good faith and fair dealing. Critically, there is no conduct outside of the alleged breach (i.e., failure to make payments) supporting this claim. (FAC ¶ 27.) It is therefore duplicative of the underlying breach of contract claims. (*Careau, supra*, 222 Cal.App.3d at p. 1395.)

Accordingly, the court SUSTAINS Defendants’ demurrer to the third cause of action.

Fourth Cause of
Action: Quantum Meruit

Defendants contend this claim fails because Plaintiff did

not plead facts regarding reasonable value, market rates, or time expended but instead imputes their alleged contract formula.

Plaintiff argues that the contract price is the most reliable evidence of the reasonable value of the services Plaintiff actually rendered for Defendants' benefit due to the parties' course of dealing.

Defendants reply that Plaintiff did not plead hours worked, market rate, customary rate, or other objective valuation metrics outside of the alleged contract.

The elements of a claim

for quantum meruit are: (1) plaintiff's performance of services, work, or labor; (2) at defendant's request; and (3) circumstances inferring defendant's promise to pay a reasonable value. (*Maglica v. Maglica* (1998) 66 Cal.App.4th 442, 449-450; *Palmer v. Gregg* (1967) 65 Cal.2d 657, 660. See also *Advanced Choices, Inc. v. Dept. of Health Services* (2010) 182 Cal.App.4th 1661, 1673 (" 'plaintiff must establish both that he or she was acting pursuant to either an express or implied request for such services from the defendant and that the services rendered were intended to and did benefit the defendant.' "); *MKB Management, Inc. v. Melikian* (2010) 184 Cal.App.4th 796, 805 ("Even if the entire contract was illegal and unenforceable, a plaintiff may recover the reasonable value of services rendered provided that those particular services were not legally prohibited.")).

Here, Plaintiff sufficiently stated a claim for quantum meruit. First, it is appropriate as an alternative to a breach of contract claim. (See, e.g., *Hedging Concepts, Inc. v. First Alliance Mortgage Co.* (1996) 41 Cal.App.4th 1410, 1419 [quantum meruit does not lie when there is a valid existing contract].) Whether Plaintiff ultimately has a valid contract claim is a future discussion in this case. Second, Plaintiff alleged the remaining elements: Plaintiff's performance of services (FAC ¶¶ 13, 20), work performed at Defendants' request (FAC ¶¶ 14-19, Exhibit B [email about the Fort Sufi project discussing materials and credit of \$100k for future work and sending]), and circumstances indicating Defendants' promise to pay (FAC ¶¶ 10 [sought services in the past], 14-18 [call re project status], Exhibit B [email about project and credit for future work].) The court is not otherwise persuaded by Defendants' arguments that Plaintiff needs to plead more than this at this

stage. Indeed, he did allege the reasonable value of his services – 20% of all invoiced work towards the total of the SOV. (FAC ¶ 8.)

Accordingly, the court OVERRULES Defendants' demurrer to the fourth cause of action.

Fifth Cause of
Action: Unjust Enrichment

Defendants contend this claim fails because there is no distinct restitution theory separate from the contract percentage and repeats the same damages.

Plaintiff argues that this is a claim for restitution plead as an alternative to the breach of contract claim.

Defendants reply that there is no independent restitution measure.

Unjust enrichment is a restitution claim, not a cause of action. (De Havilland v. FX Networks, LLC (2018) 21 Cal.App.5th 845, 870; McBride v. Coughton (2004) 123 Cal.App.4th 379, 387-88.) A valid restitution claim for unjust enrichment requires the following elements: ""receipt of a benefit and unjust retention of the benefit at the expense of another.' [Citation.] 'The theory of unjust enrichment requires one who acquires a benefit which may not justly be retained, to return either the thing or its equivalent to the aggrieved party so as not to be unjustly enriched.' [Citation.]" (Lyles v. Sangadeo-Patel (2014) 225 Cal.App.4th 759, 769; see also Professional Tax Appeal v. Kennedy-Wilson Holdings, Inc. (2018) 29 Cal.App.5th 230, 238.) A benefit may be services. (Professional Tax Appeal, supra, 29 Cal.App.5th at p. 238.) A claimant is entitled to restitution from the defendant for uncompensated performance to prevent unjust enrichment. (Id. at p. 239.)

Here, Plaintiff sufficiently stated a claim for unjust enrichment. First, they alleged they conferred a benefit (services) on Defendants. (FAC ¶ 20.) Second, they allege Defendants have refused to pay for these services. (FAC ¶ 27.) This is sufficient for the pleadings stage.

Accordingly, the court OVERRULES Defendants' demurrer to the fifth cause of action.

Sixth Cause of

Action: Promissory Estoppel

Defendants contend this claim fails because there is no clear and unambiguous promise with definite terms.

Plaintiff argues that the unilateral clerical billing error is not evidence of uncertainty about the promised rate, the passage of time reflects the timeline of the overall business relationship, and Plaintiff is not attempting to circumvent Bus. & Prof. Code §§ 7031, 7159, or 7164.

Defendants reply that the alleged promise of "20% of all invoiced work towards the Fort Sufi Project SOV" is the same undefined compensation term that renders the contract claims uncertain.

"The elements of promissory estoppel are (1) a clear promise, (2) reliance, (3) substantial detriment, and (4) damages "measured by the extent of the obligation assumed and not performed." (Toscano v. Greene Music (2004) 124 Cal.App.4th 685, 692.)

The element at issue here is a clear promise. After reviewing the FAC, Plaintiff sufficiently alleged a clear promise. Notably, the promise involved here was to pay "20% of all invoiced work towards the Fort Sufi Project SOV" in exchange for Plaintiff's services. (FAC ¶ 61.) This is the only promise supporting this cause of action. As discussed in the first cause of action, this component is sufficiently definite. (Moncada, supra 221 Cal.App.4th at p. 778.) Therefore, there is a clear promise supporting this claim.

Accordingly, the court OVERRULES Defendants' demurrer to the sixth cause of action.

Motion to Strike

Defendants move to strike the following portions of the FAC:

1. FAC

¶ 8: “joint and severally” liability allegation;

2. Prayer

for Relief ¶ 2: request for “costs and expenses” to the extent it seeks non-statutory expenses; and

3. FAC

¶¶ 21-22, 31, 54, 59: use of 20% of SOV/materials formula as damages.

i.

Joint & Several Allegation

Defendants contend this language should be stricken because there are no factual alter-ego allegations supporting it.

Plaintiff argues they alleged to have entered into an agreement with both Defendants which supports their joint and several liability as well as exhibits showing billing to both Defendants.

Defendants reply that Plaintiff’s conclusory allegation is not enough to show both Defendants manifested assent to the same payment obligation.

“Where all the parties who unite in a promise receive some benefit from the consideration, whether past or present, their promise is presumed to be joint and several.” (Civ. Code § 1659.)

Here, relief is not warranted. First, Plaintiff alleged to have entered the agreement with both Defendants. (FAC ¶ 7.) This is bolstered by invoices directed to both Defendants. (See, e.g., FAC, Exhibit G.) Whether this turns out to be true is not appropriate for the pleadings stage.

Accordingly, the court DENIES the motion to strike on this ground.

ii.

Expenses

Defendants contend the prayer seeking nonrecoverable costs should be stricken.

Plaintiff argues that the generic prayer for costs and expenses only seeks recoverable costs.

Defendants reply that by its terms “expenses” is overbroad.

The court is not persuaded by Defendants’ argument. On its face, the request for costs and expenses does not seek unrecoverable costs.

Accordingly, the court DENIES the motion to strike on this ground.

iii.

Damages Calculation

Defendants contend the court should strike language in the equitable claims purporting to calculate damages based on alleged contract methods (20% of all invoiced work) because it is not based on the reasonable value of Plaintiff’s services.

Plaintiff argues that this request is overbroad as it is relevant to all of Plaintiff’s claims and the contract terms are relevant to determining the reasonable value of the services rendered.

Defendants reply that the contract formula is not an independent reasonable value measure.

“The court may consider the price agreed upon by the parties ‘as a criterion in ascertaining the reasonable value of services performed.’” (Watson v. Wood Dimension, Inc. (1989) 209 Cal.App.3d 1359, 1365.)

Here, the court is not persuaded these allegations are improper. Notably, the alleged contract price can be used to ascertain the reasonable value of the services. (Watson, supra, 209 Cal.App.3d at p. 1365.) What is more, the calculation of the reasonable value will be up to the trier of fact. (Ibid.)

Accordingly, the court DENIES the motion to strike on this ground.

Leave to Amend

Leave to amend should be liberally granted if there is a reasonable possibility an amendment could cure the defect. (County of Santa Clara v. Superior Court (2022) 77 Cal.App.5th 1018,1035.) The Plaintiff has the burden of demonstrating that leave to amend should be granted, and that the defects can be cured by amendment. ("Plaintiff must show in what manner he can amend his complaint and how that amendment will change the legal effect of his pleading." (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349).

Here, the aforementioned defects are reasonably capable of curing. Therefore, leave to amend is warranted.

CONCLUSION:

For the foregoing reasons, the Court decides the pending motion as follows:

1. Demurrer

to the entire FAC is OVERRULED;

2. Demurrers

to the first, second, and third causes of action are SUSTAINED with leave to amend;

3. Demurrers

to the fourth, fifth, and sixth causes of action are OVERRULED;

4. Motion

to strike is DENIED;

5. Plaintiff

shall file their amended complaint within 21 days of this ruling.

Moving party is to give notice.

IT IS SO ORDERED.

Dated: August 5, 2026 _____ Upinder

S. Kalra

Judge
of the Superior Court

[1]

The court is not persuaded by Defendants' authorities because they both unequivocally involved construction work itself, not management/assisting the owner work. (MW Erectors, Inc. v.

Niederhauser Ornamental & Metal Works Co. (2005) 36 Cal.4th 412

[subcontractor to perform structural steel work]; Hydrotech Systems, Ltd. v. Oasis Waterpark (1991) 52 Cal.3d 988 [manufacture

and installation of wave simulator with design of pool component].)